

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**1. MEGAN CALLAGHAN V. BRIAN CALLAGHAN**

**25FL0254**

On May 5, 2026, Petitioner filed a Request for Order (RFO) seeking visitation orders, support orders, property control, attorney's fees, and several additional orders as listed in her moving papers. She did not file an Income and Expense Declaration. Only the RFO was served on Respondent on May 5<sup>th</sup>. None of the other required documents were served. There is no Proof of Service evidencing service of the RFO on the Department of Child Support Services (DCSS), which is a party to the action.

The parties attended Child Custody Recommending Counseling (CCRC) on August 25, 2026. They were able to reach some agreements but could not agree on all issues therefore a report with recommendations was prepared and mailed to the parties on August 27, 2026.

Respondent filed his Responsive Declaration to Request for Order and his Income and Expense Declaration on September 9, 2026. Both documents were served on Petitioner but they were not served on DCSS.

Petitioner filed and served a response to the CCRC report on September 11<sup>th</sup>. She filed and served her Income and Expense Declaration on September 17<sup>th</sup>.

Petitioner is requesting the following orders: (1) Right of first refusal for a 12-hour period or more and to include when one parent cannot care for the children overnight; (2) Exchanges to occur at 4:00pm at the current agreed upon Sherriff's department; (3) The minors to be enrolled in and attend school in El Dorado Hills for the 2026-2027 school year and both parties to comply with district/school requirements for the transfer; (4) The family residence to be appraised and Respondent to buy-out Petitioner within 90 days of the appraisal or the family residence to be listed for sale within 90 days of the appraisal; (5) Respondent to return the certificates and documentation held by him for Petitioner's gifted jewelry items; (6) Respondent to return the Christmas ornaments being withheld from Petitioner and the parties to each receive the ornaments gifted from their immediate family; (7) Guideline spousal and child support; (8) An order declaring the marriage to be long term; (9) Respondent to pay Petitioner \$575 for outstanding therapy costs for the minor; (10) Respondent to provide the minor's therapist with a form of payment; (11) Both parties to engage in co-parenting counseling in the same facility as the minors' therapist and each to sign the necessary release for the therapists to communicate regarding the parties and the minors; (12) Respondent to pay Petitioner's attorney fees in the amount of \$15,000; and (13) Any other orders deemed appropriate by the court.

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

Respondent asks the court to adopt specified portions of the CCRC report. He opposes the request to change the children's school and the right of first refusal. He further asks the court to deny the requests for an appraisal/buy-out or sale deadlines, reimbursement requests, co-parenting counseling release, property-turnover orders, support orders and attorney's fees. Additionally, he opposes Petitioner's request to find the marriage to be one of long duration.

After reviewing the filings as outlined above, the court finds the agreements and recommendations contained in the August 27, 2026 CCRC report to be in the best interests of the children and they are hereby adopted as the orders of the court.

Regarding the request for a right of first refusal, this request is denied. The court does not find a right of first refusal as proposed by Petitioner to be in the best interests of the children as it would serve to disrupt their day-to-day schedule and cause unnecessary exchanges each time Respondent needs to attend work in-person. Respondent has already arranged for care for the children in those situations and therefore, the right of first refusal request is denied.

The requests for spousal and child support are dropped from calendar. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Petitioner failed to file her Income and Expense Declaration until just five court days prior to the hearing. Moreover, DCSS is a party to the case and Petitioner failed to serve them. For the foregoing reasons, Petitioner's requests for spousal support and child support are dropped from calendar.

Likewise, the requests for reimbursement of the minor's uninsured therapy costs and the request for Respondent to provide payment information to cover future therapy costs fall within the purview of child support add-ons and thus would require notice to DCSS. These requests are therefore dropped from calendar.

The court is reserving jurisdiction over Petitioner's request to deem the marriage one of long duration until the time of trial.

Turning to the requests regarding the appraisal and the buy-out or sale of the marital residence, the court is setting a review hearing and reserving on these requests until that time. A review hearing is set for Thursday January 7<sup>th</sup>, 2027, at 8:30am in Department 5. Pending the review hearing, Respondent is ordered to pay all costs associated with the residence including the mortgage, utilities, and homeowners insurance.

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

Regarding the request for the jewelry certificates and ornaments, those requests are both granted. Petitioner is to provide Respondent with an itemized list of the subject jewelry items. Once received Respondent is to provide Petitioner with any and all certificates and registered paperwork that are within his possession or control. If Respondent does not have possession of the paperwork but has knowledge of the location of the paperwork, he is to provide that information to Petitioner forthwith. Likewise, Respondent shall return the first Christmas ornaments and any other ornaments that were gifted to the children by the maternal grandparents. The court is reserving jurisdiction over the characterization of all of the aforementioned items until the time of trial.

Finally, Petitioner's request for attorney's fees is granted. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. "In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party's case adequately." *Id.* at (b).

Here, after reviewing each party's respective earnings and the amounts ordered for support, the court does find there to be a significant disparity in income such that the parties have unequal access to legal representation. The court further finds that Respondent does have the ability to pay for the attorney's fees for both parties. That said, at first glance the court was of the impression that \$15,000 did not seem reasonable. However, it appears that both parties have already incurred nearly \$30,000 in attorney's fees. As such, the court does find \$15,000 to be reasonable. Respondent is ordered to pay directly to Petitioner's attorney \$15,000 as and for attorney's fees. This amount may be paid in one lump sum or in monthly increments of \$500 commencing on October 1, 2026 and continuing on the 1<sup>st</sup> of each month thereafter until paid in full (approximately 30 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**TENTATIVE RULING #1: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE AUGUST 27, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE CHILDREN AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.**

**REGARDING THE REQUEST FOR A RIGHT OF FIRST REFUSAL, THIS REQUEST IS DENIED.**

**THE REQUESTS FOR SPOUSAL AND CHILD SUPPORT ARE DROPPED FROM CALENDAR.**

**LIKEWISE, THE REQUESTS FOR REIMBURSEMENT OF THE MINOR'S UNINSURED THERAPY COSTS AND THE REQUEST FOR RESPONDENT TO PROVIDE PAYMENT INFORMATION TO COVER FUTURE THERAPY COSTS FALL WITHIN THE PURVIEW OF CHILD SUPPORT ADD-ONS AND THUS WOULD REQUIRE NOTICE TO DCSS. THESE REQUESTS ARE THEREFORE DROPPED FROM CALENDAR.**

**THE COURT IS RESERVING JURISDICTION OVER PETITIONER'S REQUEST TO DEEM THE MARRIAGE ONE OF LONG DURATION UNTIL THE TIME OF TRIAL.**

**TURNING TO THE REQUESTS REGARDING THE APPRAISAL AND THE BUY-OUT OR SALE OF THE MARITAL RESIDENCE, THE COURT IS SETTING A REVIEW HEARING AND RESERVING ON THESE REQUESTS UNTIL THAT TIME. A REVIEW HEARING IS SET FOR THURSDAY JANUARY 7<sup>TH</sup>, 2027, AT 8:30 AM IN DEPARTMENT 5 PENDING THE REVIEW HEARING, RESPONDENT IS ORDERED TO PAY ALL COSTS ASSOCIATED WITH THE RESIDENCE INCLUDING THE MORTGAGE, UTILITIES, AND HOMEOWNERS INSURANCE.**

**REGARDING THE REQUEST FOR THE JEWELRY CERTIFICATES AND ORNAMENTS, THOSE REQUESTS ARE BOTH GRANTED. PETITIONER IS TO PROVIDE RESPONDENT WITH AN ITEMIZED LIST OF THE SUBJECT JEWELRY ITEMS. ONCE RECEIVED RESPONDENT IS TO PROVIDE PETITIONER WITH ANY AND ALL CERTIFICATES AND REGISTERED PAPERWORK THAT ARE WITHIN HIS POSSESSION OR CONTROL. IF RESPONDENT DOES NOT HAVE POSSESSION OF THE PAPERWORK BUT HAS KNOWLEDGE OF THE LOCATION OF THE PAPERWORK, HE IS TO PROVIDE THAT INFORMATION TO PETITIONER FORTHWITH. LIKEWISE, RESPONDENT SHALL RETURN THE FIRST CHRISTMAS ORNAMENTS AND ANY OTHER ORNAMENTS THAT WERE GIFTED TO THE CHILDREN BY THE MATERNAL GRANDPARENTS. THE COURT IS**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**RESERVING JURISDICTION OVER THE CHARACTERIZATION OF ALL OF THE AFOREMENTIONED ITEMS UNTIL THE TIME OF TRIAL.**

**FINALLY, PETITIONER'S REQUEST FOR ATTORNEY'S FEES IS GRANTED. RESPONDENT IS ORDERED TO PAY DIRECTLY TO PETITIONER'S ATTORNEY \$15,000 AS AND FOR ATTORNEY'S FEES. THIS AMOUNT MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$500 COMMENCING ON OCTOBER 1, 2026 AND CONTINUING ON THE 1<sup>ST</sup> OF EACH MONTH THEREAFTER UNTIL PAID IN FULL (APPROXIMATELY 30 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.**

**PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**2. CURTIS CHRISTENSEN V. GINA CHRISTENSEN**

**PFL20170845**

Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) on June 4, 2026, alleging 21 counts of contempt. Respondent was personally served on July 7, 2026.

Parties appeared on August 13, 2026, at which time the court noted Minors' Counsel was not present and had not been properly served. Petitioner requested the matter be continued to allow time to serve Minors' Counsel. The court granted the request to continue and set the matter for a further hearing on September 24, 2026 at 8:30 AM in Department 5.

Petitioner filed a Declaration of Counsel on August 27, 2026, attesting to the service of Minors' Counsel. The Declaration was served on Respondent, Minors' Counsel, as well as the Department of Child Support Services on August 27, 2026.

Parties are ordered to appear for arraignment.

**TENTATIVE RULING #2: PARTIES ARE ORDERED TO APPEAR FOR ARRAIGNMENT.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**3. DANNA DEPUGLIA V. BRUCE LESLIE GILBERT**

**26FL0466**

On July 23, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support and attorney's fees. She filed her Income and Expense Declaration concurrently therewith. All required documents were served electronically on July 24<sup>th</sup>.

Respondent filed and served his Income and Expense Declaration and his Responsive Declaration to Request for Order on September 3, 2026.

Petitioner has not filed a reply declaration.

Petitioner is requesting guideline spousal support and need-based attorney's fees in the amount of \$5,000.

Respondent opposes the request for support. If the court is inclined to award spousal support, Respondent asks that he be permitted to deduct Petitioner's one-half share of the mortgage for the Ridgeway Drive property pending its sale. He also opposes the request for attorney's fees. However, if attorney's fees are granted, he asks that they be awarded from Respondent's share of the net sale proceeds of the home.

After reviewing the filings of the parties, it does appear that Petitioner has the capacity to earn more than she currently does and to eventually become self-supporting. That said, the parties just recently separated in April of this year. Given that it has been just months since the separation the court is not inclined to deny or reduce support based on the fact that Petitioner is not yet self-supporting. As such, the request for spousal support is granted. Utilizing the figures as outlined in the attached Xspouse report, the court finds that spousal support per the Alameda formula is \$702 per month. See attached Xspouse report. The court adopts the attached Xspouse report and orders Respondent to pay Petitioner \$702 per month as and for temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of August 1, 2026.

The court finds the above order results in arrears in the amount of \$1,404 through and including September 1, 2026. The court orders Respondent pay Petitioner \$117 on the 15th of each month commencing on October 15, 2026 and continuing until paid in full (approximately 12 months). If any payment is missed or late, the entire amount shall become immediately due and payable with legal interest.

The court further finds Respondent routinely earns overtime pay and therefore has included an overtime table with the Xspouse. Respondent is to pay Petitioner a true up of

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

any overtime earned no later than fourteen days from the date the overtime payment is received.

The court reserves jurisdiction over the issue of credits for payment of mortgage on the home.

Turning to the issue of attorney's fees, in the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. "In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party's case adequately." *Id.* at (b).

Here, given that Respondent's monthly income is close to double that of Petitioner's the court does find there to be a disparity in income and therefore a disparity in each party's access to legal representation. That said, the court does note that Respondent has little in the way of liquid assets therefore an award of attorney's fees to be paid for from the proceeds of the home seems to be the most equitable option. As such, Petitioner is awarded \$5,000 as and for attorney's fees and costs. This amount is to be paid directly to Petitioner's attorney and to be paid out of Respondent's portion of proceeds from the sale of the Ridgeway Drive property.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #3: THE REQUEST FOR SPOUSAL SUPPORT IS GRANTED. UTILIZING THE FIGURES AS OUTLINED IN THE ATTACHED XSPOUSE REPORT, THE COURT FINDS THAT SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$702 PER MONTH. SEE ATTACHED XSPOUSE REPORT. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS RESPONDENT TO PAY PETITIONER \$702 PER MONTH AS AND FOR TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF AUGUST 1, 2026.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$1,404 THROUGH AND INCLUDING SEPTEMBER 1, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$117 ON THE 15TH OF EACH MONTH COMMENCING ON OCTOBER 15, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS). IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE WITH LEGAL INTEREST.

THE COURT FURTHER FINDS RESPONDENT ROUTINELY EARNS OVERTIME PAY AND THEREFORE HAS INCLUDED AN OVERTIME TABLE WITH THE XSPOUSE. RESPONDENT IS TO PAY PETITIONER A TRUE UP OF ANY OVERTIME EARNED NO LATER THAN FOURTEEN DAYS FROM THE DATE THE OVERTIME PAYMENT IS RECEIVED.

THE COURT RESERVES JURISDICTION OVER THE ISSUE OF CREDITS FOR PAYMENT OF MORTGAGE ON THE HOME.

RESPONDENT IS TO PAY PETITIONER'S ATTORNEY \$5,000 AS AND FOR ATTORNEY'S FEES AND COSTS. THIS AMOUNT IS TO BE PAID DIRECTLY TO PETITIONER'S ATTORNEY AND TO BE PAID OUT OF RESPONDENT'S PORTION OF PROCEEDS FROM THE SALE OF THE RIDGEWAY DRIVE PROPERTY.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

| Fixed Shares             | Father  | Mother | Monthly figures    | Cash Flow           |                            |          |      |
|--------------------------|---------|--------|--------------------|---------------------|----------------------------|----------|------|
| #of children             | 0       | 1      | 2026               |                     | Guideline                  | Proposed |      |
| % time with NCP          | 20.00 % | 0.00 % |                    | Comb. net spendable | 13333                      | 13333    |      |
| Filing status            | SINGLE  | HH/MLA | GUIDELINE          | Percent change      | 0%                         | 0%       |      |
| # exemptions             | 1 *     | 2 *    | Nets(adjusted)     | Father              |                            |          |      |
| Wages+salary             | 9662    | 6488   | Father             | 8367                | Payment cost/benefit       | -702     | -603 |
| Self-employed income     | 0       | 0      | Mother             | 4966                | Net spendable income       | 7665     | 7764 |
| Other taxable income     | 0       | 0      | Total              | 13333               | Change from guideline      | 0        | 99   |
| TANF+CS received         | 0       | 0      | Support            |                     | % of combined spendable    | 57%      | 58%  |
| Other nontaxable income  | 1513    | 0      | Addons             | 0                   | % of saving over guideline | 0%       | 0%   |
| New spouse income        | 0       | 0      | Guideln CS         | 0                   | Total taxes                | 2788     | 2564 |
| 401(k) employee contrib  | 0       | 0      | Alameda SS         | 702                 | Dep. exemption value       | 0        | 0    |
| Adjustments to income    | 0       | 0      | Total              | 702                 | # withholding allowances   | 0        | 0    |
| SS paid prev marriage    | 0       | 0      | -                  |                     | Net wage paycheck          | 6632     | 6632 |
| CS paid prev marriage    | 0       | 0      | Settings changed   |                     | Mother                     |          |      |
| Health insurance         | 0       | 134    |                    |                     | Payment cost/benefit       | 702      | 603  |
| Other medical expense    | 0       | 0      |                    |                     | Net spendable income       | 5668     | 5569 |
| Property tax expense     | 0       | 0      | Proposed           |                     | Change from guideline      | 0        | -99  |
| Ded interest expense     | 0       | 0      | Tactic 9           |                     | % of combined spendable    | 43%      | 42%  |
| Charitable contributions | 0       | 0      |                    |                     | % of saving over guideline | 0%       | 0%   |
| Misc tax deductions      | 0       | 0      | CS                 | 0                   | Total taxes                | 869      | 1093 |
| Qual bus income ded      | 0       | 0      | SS                 | 827                 | Dep. exemption value       | 0        | 0    |
| Required union dues      | 20      | 0      | Total              | 827                 | # withholding allowances   | 0        | 0    |
| Mandatory retirement     | 0       | 519    |                    |                     | Net wage paycheck          | 5187     | 5187 |
| Hardship deduction       | 0 *     | 0 *    | Saving             | 0                   |                            |          |      |
| Other GDL deductions     | 0       | 0      | Releases           | 1                   |                            |          |      |
| Child care expenses      | 0       | 0      | Released to Father |                     |                            |          |      |

Father pays Guideline SS, Proposed SS

FC 4055 checking: ON

| Per Child Information | Timeshare | cce(F) | cce(M) | Addons | Payor  | Basic CS | Payor  | Pres CS | Payor  |
|-----------------------|-----------|--------|--------|--------|--------|----------|--------|---------|--------|
| All children          | 20 - 80   | 0      | 0      | 0      | Father | 0        | Father | 0       | Father |
|                       | 20 - 80   | 0      | 0      | 0      | Father | 0        | Father | 0       | Father |

## Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0  
Prior relationship(s): OFF

| Additional Cost to Father |            |    |                 |     |          |                        |
|---------------------------|------------|----|-----------------|-----|----------|------------------------|
| Child Support             |            |    | Spousal Support |     | Total CS | Total SS<br>(adjusted) |
| Father's Bonus            | % of bonus | \$ | % of bonus      | \$  |          |                        |
| 0                         | 0.00       | 0  | 0.00            | 0   | 0        | 0                      |
| 100                       | 0.00       | 0  | 16.16           | 16  | 0        | 8,438                  |
| 200                       | 0.00       | 0  | 16.16           | 32  | 0        | 8,454                  |
| 300                       | 0.00       | 0  | 16.16           | 48  | 0        | 8,470                  |
| 400                       | 0.00       | 0  | 16.16           | 65  | 0        | 8,486                  |
| 500                       | 0.00       | 0  | 16.16           | 81  | 0        | 8,502                  |
| 600                       | 0.00       | 0  | 16.16           | 97  | 0        | 8,519                  |
| 700                       | 0.00       | 0  | 16.16           | 113 | 0        | 8,535                  |
| 800                       | 0.00       | 0  | 16.16           | 129 | 0        | 8,551                  |
| 900                       | 0.00       | 0  | 16.16           | 145 | 0        | 8,567                  |
| 1,000                     | 0.00       | 0  | 16.16           | 162 | 0        | 8,583                  |
| 1,100                     | 0.00       | 0  | 16.16           | 178 | 0        | 8,599                  |
| 1,200                     | 0.00       | 0  | 16.16           | 194 | 0        | 8,616                  |
| 1,300                     | 0.00       | 0  | 16.16           | 210 | 0        | 8,632                  |
| 1,400                     | 0.00       | 0  | 16.16           | 226 | 0        | 8,648                  |
| 1,500                     | 0.00       | 0  | 16.16           | 242 | 0        | 8,664                  |
| 1,600                     | 0.00       | 0  | 16.17           | 259 | 0        | 8,680                  |
| 1,700                     | 0.00       | 0  | 16.17           | 275 | 0        | 8,697                  |
| 1,800                     | 0.00       | 0  | 16.17           | 291 | 0        | 8,713                  |
| 1,900                     | 0.00       | 0  | 16.17           | 307 | 0        | 8,729                  |
| 2,000                     | 0.00       | 0  | 16.17           | 323 | 0        | 8,745                  |
| 2,100                     | 0.00       | 0  | 16.17           | 340 | 0        | 8,761                  |
| 2,200                     | 0.00       | 0  | 16.17           | 356 | 0        | 8,777                  |
| 2,300                     | 0.00       | 0  | 16.17           | 372 | 0        | 8,794                  |
| 2,400                     | 0.00       | 0  | 16.17           | 388 | 0        | 8,810                  |
| 2,500                     | 0.00       | 0  | 16.17           | 404 | 0        | 8,826                  |
| 2,600                     | 0.00       | 0  | 16.17           | 421 | 0        | 8,842                  |
| 2,700                     | 0.00       | 0  | 16.17           | 437 | 0        | 8,858                  |
| 2,800                     | 0.00       | 0  | 16.17           | 453 | 0        | 8,875                  |
| 2,900                     | 0.00       | 0  | 16.18           | 469 | 0        | 8,891                  |
| 3,000                     | 0.00       | 0  | 16.18           | 485 | 0        | 8,907                  |
| 3,100                     | 0.00       | 0  | 16.18           | 501 | 0        | 8,923                  |
| 3,200                     | 0.00       | 0  | 16.18           | 518 | 0        | 8,939                  |
| 3,300                     | 0.00       | 0  | 16.18           | 534 | 0        | 8,956                  |
| 3,400                     | 0.00       | 0  | 16.18           | 550 | 0        | 8,972                  |
| 3,500                     | 0.00       | 0  | 16.18           | 566 | 0        | 8,988                  |
| 3,600                     | 0.00       | 0  | 16.18           | 583 | 0        | 9,004                  |
| 3,700                     | 0.00       | 0  | 16.18           | 599 | 0        | 9,020                  |
| 3,800                     | 0.00       | 0  | 16.18           | 615 | 0        | 9,037                  |
| 3,900                     | 0.00       | 0  | 16.18           | 631 | 0        | 9,053                  |
| 4,000                     | 0.00       | 0  | 16.18           | 647 | 0        | 9,069                  |
| 4,100                     | 0.00       | 0  | 16.19           | 664 | 0        | 9,085                  |
| 4,200                     | 0.00       | 0  | 16.19           | 680 | 0        | 9,102                  |
| 4,300                     | 0.00       | 0  | 16.19           | 696 | 0        | 9,118                  |
| 4,400                     | 0.00       | 0  | 16.19           | 712 | 0        | 9,134                  |

Annual Bonus Income

Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother:0

Prior relationship(s):OFF

| Additional Cost to Father |                             |    |                               |     |  | Total CS | Total SS<br>(adjusted) |
|---------------------------|-----------------------------|----|-------------------------------|-----|--|----------|------------------------|
| Father's Bonus            | Child Support<br>% of bonus | \$ | Spousal Support<br>% of bonus | \$  |  |          |                        |
| 4,500                     | 0.00                        | 0  | 16.19                         | 728 |  | 0        | 9,150                  |
| 4,600                     | 0.00                        | 0  | 16.19                         | 745 |  | 0        | 9,166                  |
| 4,700                     | 0.00                        | 0  | 16.19                         | 761 |  | 0        | 9,183                  |
| 4,800                     | 0.00                        | 0  | 16.19                         | 777 |  | 0        | 9,199                  |
| 4,900                     | 0.00                        | 0  | 16.19                         | 793 |  | 0        | 9,215                  |
| 5,000                     | 0.00                        | 0  | 16.19                         | 810 |  | 0        | 9,231                  |

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**4. JUSTIN HALLOCK V. DEBRA HALLOCK**

**PFL20200781**

Respondent filed a Request for Order (RFO) on June 29, 2026, seeking orders to enroll the minors in public school. Proof of Service shows Petitioner, Minors' Counsel, and the Department of Child Support Services were served on July 2, 2026.

Petitioner filed a Responsive Declaration on August 31, 2026. It was served on Respondent and Minors' Counsel on August 31, 2026.

Minors' Counsel filed a Responsive Declaration on August 31, 2026. It was served on Petitioner and Respondent on August 31, 2026.

Respondent filed a Supplemental Declaration on September 9, 2026, that is wholly unrelated to the request to enroll the minors in public school. Therefore, the court has not considered it in relation to the present hearing.

Respondent filed a Reply Declaration on September 15, 2026. It was served the same day.

The court has reviewed and considered the filings as outlined above. The court notes the parties are currently pending a Family Code section 3111 evaluation. This may impact the custody arrangement. As such, the court finds it to be premature to address the school choice issue. Further, the school year has commenced, and it is not an opportune time to change school. Therefore, the court finds good cause to continue this request to join with the hearing currently pending on November 19, 2026, at 8:30 AM in Department 5 for review of the Family Code section 3111 evaluation. Any supplemental declarations are to be filed and served at least 10 days prior to the hearing. Pending the review hearing all current orders remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #4: THE COURT FINDS GOOD CAUSE TO CONTINUE THIS REQUEST TO JOIN WITH THE HEARING CURRENTLY PENDING ON NOVEMBER 19, 2026, AT 8:30 AM IN DEPARTMENT 5 FOR REVIEW OF THE FAMILY CODE SECTION 3111 EVALUATION. ANY SUPPLEMENTAL DECLARATIONS ARE TO BE FILED AND SERVED AT LEAST 10 DAYS PRIOR TO THE HEARING. PENDING THE REVIEW HEARING ALL CURRENT ORDERS REMAIN IN FULL FORCE AND EFFECT.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**5. ALISHA HERRMANN V. PATRICK HERRMANN**

**26FL0433**

On June 25, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, support orders, attorney's fees, and property orders. She filed her Income and Expense Declaration concurrently therewith. There is no Proof of Service for the moving papers or any of the required supporting documents, nevertheless, Respondent has filed a response to the RFO thereby waiving any potential defect in service.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on August 5, 2026. He filed a UCCJEA declaration the same day asserting paternity of the minor.

Petitioner has not filed a reply declaration.

The parties attended Child Custody Recommending Counseling (CCRC) on August 6, 2026 and were able to reach agreements on all custody and visitation issues. A report with those agreements was prepared on August 6<sup>th</sup> and mailed to the parties on August 7<sup>th</sup>.

Petitioner is requesting guideline spousal and child support. She requests primary physical custody of the minor and asks that Respondent have parenting time one evening after work during the week and one full day each weekend. She asks that Respondent be ordered to pay Petitioner's outstanding medical debt and that he be ordered to pay for Petitioner's ongoing medical needs and expenses. She asks that the parties be ordered to set a date for Petitioner to retrieve her personal property and that of the minor from the marital residence without Respondent present. Finally, she is requesting \$5,000 in attorney's fees, and all other orders as deemed appropriate by the court.

Respondent opposes Petitioner's requests and instead asks for a 2-2-3 parenting plan. He further asks that the minor be enrolled in Sliva Valley Elementary School in El Dorado Hills, and that she receive all vaccinations required for her to do so. He does not oppose guideline support but asks that he be credited for payments made to Petitioner since the date of the Petition for Dissolution on May 6, 2026. He asks that Petitioner be ordered to participate in a vocational evaluation and that she be ordered to seek fulltime employment submitting 5 applications per week and providing Respondent proof thereof. Finally, he requests a *Gavron* warning and asks that each party bear their own attorney's fees.

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

After reviewing the filings as outlined above, the court finds the agreements contained in the August 6, 2026 CCRC report to be in the best interests of the minor and they are hereby adopted as the orders of the court.

Regarding the personal property items, the parties are ordered to meet and confer to select a date(s)/time(s) that are agreeable to both parties for Petitioner to access the residence. Prior to the time of retrieval, the parties are to meet and confer and agree upon list of items Petitioner will retrieve. The parties are to arrange a neutral third party to be present at the time Petitioner retrieves the agreed upon property. This may be law enforcement or some other individual as agreed upon by the parties. Respondent shall not be present while Petitioner is on the property. The third party observer may not interfere with Petitioner's retrieval of the property but may document it either in writing or video.

Respondent's request for a vocational evaluation is granted. Respondent shall provide Petitioner with the names of three evaluators no later than October 1<sup>st</sup>. Petitioner shall pick one of the three names and inform Respondent of her selection no later than October 8<sup>th</sup>. Respondent shall bear the entire cost of the evaluation subject to reallocation.

The court is reserving on Respondent's request to order Petitioner to seek fulltime work and issue a *Gavron* warning until after receipt of the vocational evaluation as it is unclear to the court if Petitioner has the ability to work fulltime given her medical condition. A review hearing is set for Thursday January 7<sup>th</sup>, 2027, at 8:30am for receipt and review of the vocational evaluation.

Regarding support, utilizing the same figures as outlined attached Xspouse report, the court finds that child support is \$1,199 per month and spousal support per the Alameda formula is \$1,360 per month. See attached Xspouse report. The court adopts the attached Xspouse report and orders Respondent to pay Petitioner \$2,559 per month as and for child support and temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of July 1, 2026.

The court finds the above order results in arrears in the amount of \$7,677 through and including September 1, 2026. The court orders Respondent pay Petitioner \$639.75 on the 15th of each month commencing on October 15, 2026 and continuing until paid in full (approximately 12 months). If a payment is late or missed the remaining balance is due in full with legal interest within five (5) days.

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

In addition to the aforementioned support, Respondent is ordered to make the monthly payments on Petitioner's medical expenses incurred prior to the date of separation. These payments are subject to reallocation at the time of trial.

Regarding the ongoing medical expenses and medical expenses incurred after the date of separation, "[d]ebts incurred by either spouse for the common necessities of life of either spouse...in the absence of a court order or written agreement for support or for the payment of these debts, shall be confirmed to either spouse according to the parties' respective needs and abilities to pay at the time the debt was incurred." Here, from the date of separation until the date of this ruling, there was no order for support. That, coupled with the fact that medical bills are quite clearly debts for the necessities of life, means that those debts are to be confirmed to the spouse with the greater ability to pay. Respondent is therefore ordered to pay for Petitioner's medical expenses that were incurred after the date of separation but prior to the date of the support order. From the date of the support order forward, Petitioner is ordered to pay the costs of her own medical expenses. All payments for medical expenses are subject to reallocation at trial.

Turning to the request for attorney's fees, the request is denied. In the face of a request for need-based attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Here, even with the court ordered support, a disparity in income does remain. Nevertheless, because Respondent is being ordered to pay the monthly costs of Petitioner's medical expenses that were incurred prior to the date of separation, the court finds that Respondent does not have the ability to pay for both his fees and those of Petitioner's attorney. As such, the request is denied.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #5: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE AGREEMENTS CONTAINED IN THE AUGUST 6, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.**

**REGARDING THE PERSONAL PROPERTY ITEMS, THE PARTIES ARE ORDERED TO MEET AND CONFER TO SELECT A DATE(S)/TIME(S) THAT ARE AGREEABLE TO BOTH**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**PARTIES FOR PETITIONER TO ACCESS THE RESIDENCE. PRIOR TO THE TIME OF RETRIEVAL, THE PARTIES ARE TO MEET AND CONFER AND AGREE UPON LIST OF ITEMS PETITIONER WILL RETRIEVE. THE PARTIES ARE TO ARRANGE A NEUTRAL THIRD PARTY TO BE PRESENT AT THE TIME PETITIONER RETRIEVES THE AGREED UPON PROPERTY. THIS MAY BE LAW ENFORCEMENT OR SOME OTHER INDIVIDUAL AS AGREED UPON BY THE PARTIES. RESPONDENT SHALL NOT BE PRESENT WHILE PETITIONER IS ON THE PROPERTY. THE THIRD PARTY OBSERVER MAY NOT INTERFERE WITH PETITIONER'S RETRIEVAL OF THE PROPERTY BUT MAY DOCUMENT IT EITHER IN WRITING OR VIDEO.**

**RESPONDENT'S REQUEST FOR A VOCATIONAL EVALUATION IS GRANTED. RESPONDENT SHALL PROVIDE PETITIONER WITH THE NAMES OF THREE EVALUATORS NO LATER THAN OCTOBER 1<sup>ST</sup>. PETITIONER SHALL PICK ONE OF THE THREE NAMES AND INFORM RESPONDENT OF HER SELECTION NO LATER THAN OCTOBER 8<sup>TH</sup>. RESPONDENT SHALL BEAR THE ENTIRE COST OF THE EVALUATION SUBJECT TO REALLOCATION.**

**THE COURT IS RESERVING ON RESPONDENT'S REQUEST TO ORDER PETITIONER TO SEEK FULLTIME WORK AND ISSUE A GAVRON WARNING UNTIL AFTER RECEIPT OF THE VOCATIONAL EVALUATION AS IT IS UNCLEAR TO THE COURT IF PETITIONER HAS THE ABILITY TO WORK FULLTIME GIVEN HER MEDICAL CONDITION. A REVIEW HEARING IS SET FOR THURSDAY JANUARY 7<sup>TH</sup>, 2027, AT 8:30 AM IN DEPARTMENT 5 FOR RECEIPT AND REVIEW OF THE VOCATIONAL EVALUATION.**

**REGARDING SUPPORT, UTILIZING THE SAME FIGURES AS OUTLINED ATTACHED XSPOUSE REPORT, THE COURT FINDS THAT CHILD SUPPORT IS \$1,199 PER MONTH AND SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$1,360 PER MONTH. SEE ATTACHED XSPOUSE REPORT. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS RESPONDENT TO PAY PETITIONER \$2,559 PER MONTH AS AND FOR CHILD SUPPORT AND TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF JULY 1, 2026.**

**THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$7,677 THROUGH AND INCLUDING SEPTEMBER 1, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$639.75 ON THE 15TH OF EACH MONTH COMMENCING ON OCTOBER 15, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS). IF A PAYMENT IS LATE OR MISSED THE REMAINING BALANCE IS DUE IN FULL WITH LEGAL INTEREST WITHIN FIVE (5) DAYS.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**IN ADDITION TO THE AFOREMENTIONED SUPPORT, RESPONDENT IS ORDERED TO MAKE THE MONTHLY PAYMENTS ON PETITIONER'S MEDICAL EXPENSES INCURRED PRIOR TO THE DATE OF SEPARATION. THESE PAYMENTS ARE SUBJECT TO REALLOCATION AT THE TIME OF TRIAL.**

**RESPONDENT IS FURTHER ORDERED TO PAY FOR PETITIONER'S MEDICAL EXPENSES THAT WERE INCURRED AFTER THE DATE OF SEPARATION BUT PRIOR TO THE DATE OF THE SUPPORT ORDER. FROM THE DATE OF THE SUPPORT ORDER FORWARD, PETITIONER IS ORDERED TO PAY THE COSTS OF HER OWN MEDICAL EXPENSES. ALL PAYMENTS FOR MEDICAL EXPENSES ARE SUBJECT TO REALLOCATION AT TRIAL.**

**TURNING TO THE REQUEST FOR ATTORNEY'S FEES, THE REQUEST IS DENIED AS RESPONDENT DOES NOT HAVE THE ABILITY TO PAY THE FEES OF BOTH PARTIES.**

**PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

| Fixed Shares             | Father  | Mother | Monthly figures |       | Cash Flow                  | Guideline | Proposed |
|--------------------------|---------|--------|-----------------|-------|----------------------------|-----------|----------|
| #of children             | 0       | 1      | 2026            |       |                            |           |          |
| % time with NCP          | 49.99 % | 0.00 % | GUIDELINE       |       | Comb. net spendable        | 10134     | 10134    |
| Filing status            | MFJ->   | <-MFJ  | Nets(adjusted)  |       | Percent change             | 0%        | 0%       |
| # exemptions             | 1 *     | 2 *    |                 |       | Father                     |           |          |
| Wages+salary             | 11244   | 0      | Father          | 8292  | Payment cost/benefit       | -2559     | -2559    |
| Self-employed income     | 0       | 0      | Mother          | 1843  | Net spendable income       | 5732      | 5732     |
| Other taxable income     | 0       | 2122   | Total           | 10134 | Change from guideline      | 0         | 0        |
| TANF+CS received         | 0       | 0      | Support         |       | % of combined spendable    | 57%       | 57%      |
| Other nontaxble income   | 0       | 0      | Addons          | 0     | % of saving over guideline | 0%        | 0%       |
| New spouse income        | 0       | 0      | Guideln CS      | 1199  | Total taxes                | 2486      | 2486     |
| 401(k) employee contrib  | 0       | 0      | Alameda SS      | 1360  | Dep. exemption value       | 0         | 0        |
| Adjustments to income    | 0       | 0      | Total           | 2559  | # withholding allowances   | 0w        | 0w       |
| SS paid prev marriage    | 0       | 0      | -               |       | Net wage paycheck          | 8531      | 8531     |
| CS paid prev marriage    | 0       | 0      |                 |       | Mother                     |           |          |
| Health insurance         | 466     | 0      |                 |       | Payment cost/benefit       | 2559      | 2559     |
| Other medical expense    | 0       | 0      |                 |       | Net spendable income       | 4402      | 4402     |
| Property tax expense     | 0       | 0      |                 |       | Change from guideline      | 0         | 0        |
| Ded interest expense     | 0       | 0      | Proposed        |       | % of combined spendable    | 43%       | 43%      |
| Charitable contributions | 0       | 0      | Tactic 9        |       | % of saving over guideline | 0%        | 0%       |
| Misc tax deductions      | 0       | 0      | CS              | 1199  | Total taxes                | 279       | 279      |
| Qual bus income ded      | 0       | 0      | SS              | 1360  | Dep. exemption value       | 0         | 0        |
| Required union dues      | 0       | 0      | Total           | 2559  | # withholding allowances   | 0w        | 0w       |
| Mandatory retirement     | 0       | 0      |                 |       | Net wage paycheck          | 0         | 0        |
| Hardship deduction       | 0 *     | 0 *    | Saving          | 0     |                            |           |          |
| Other GDL deductions     | 0       | 0      | Releases        | 0     |                            |           |          |
| Child care expenses      | 0       | 0      |                 |       |                            |           |          |

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

| Per Child Information |           |        |        |        |        |          |        |               |
|-----------------------|-----------|--------|--------|--------|--------|----------|--------|---------------|
|                       | Timeshare | cce(F) | cce(M) | Addons | Payor  | Basic CS | Payor  | Pres CS Payor |
| All children          | 49 - 51   | 0      | 0      | 0      | Father | 1199     | Father | 1199 Father   |
|                       | 49 - 51   | 0      | 0      | 0      | Father | 1199     | Father | 1199 Father   |

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**6. JON WATSON V. ASHLEY ROOT**

**26FL0535**

Petitioner filed a Request for Order (RFO) seeking child custody and parenting plan orders, on June 24, 2026. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 13, 2026, and a review hearing on September 24, 2026. Respondent was served the required documents on June 29, 2026.

Respondent filed a Responsive Declaration and Declaration in Support on August 6, 2026. Both were served on Petitioner the same day.

Both parties appeared at CCRC and reached a full agreement. A report with the parties' agreement was prepared on August 13, 2026.

The court has read and considered the filings as outlined above. The court finds the agreement of the parties to be in the best interest of the minor. The court adopts the agreement as set forth in the August 13<sup>th</sup> CCRC report.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #6: THE COURT FINDS THE AGREEMENT OF THE PARTIES TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENT AS SET FORTH IN THE AUSTU 13<sup>TH</sup> CCRC REPORT.**

**ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON**

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 24, 2026

8:30 AM/1:30 PM

**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE  
8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**7. DUNIA LANDAVERDE V. ANGEL LANDAVERDE**

**23FL0394**

Respondent filed a Request for Order (RFO) on June 25, 2026, seeking bifurcation of marital status. Respondent was mail served on July 2, 2026.

Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems the failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

Regarding the request for bifurcation, a party may request bifurcation of the issue of marital status, however prior to doing so the party must ensure that "[a]ll pension plans that have not been divided by court order that require joinder ..." have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315. Cal. Rule Ct. 5.390(a).

Here, Respondent has filed the requisite paperwork and it appears the requisite retirement plan has been joined. Accordingly, the court finds good cause to bifurcate the case and grant a separate trial on the issue of marital status only. The parties are ordered to appear for the hearing.

**TENTATIVE RULING #7: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**8. SUNG LEE V. YUNJEE AHN**

**25FL1114**

Respondent filed a Request for Order (RFO) on June 25, 2026, seeking child and spousal support orders as well as Family Code section 2030 attorney's fees, and various other fees. Respondent concurrently filed an Income and Expense Declaration and Declaration of counsel in support of attorney's fees.

Petitioner has not filed a Responsive Declaration or an Income and Expense Declaration.

Parties are ordered to appear for the hearing. Petitioner is ordered to bring a completed Income and Expense Declaration to the hearing.

**TENTATIVE RULING #8: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.  
PETITIONER IS ORDERED TO BRING A COMPLETED INCOME AND EXPENSE  
DECLARATION TO THE HEARING.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**10. JEFFREY NICHOLSON V. LUCIA NICHOLSON**

**PFL20210381**

Petitioner filed a Request for Order (RFO) on June 29, 2026, seeking bifurcation of marital status. Respondent was mail served on June 30, 2026.

Petitioner filed an amended RFO on July 20, 2026. Respondent was mail served on July 23, 2026.

Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems the failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

Regarding the request for bifurcation, a party may request bifurcation of the issue of marital status, however prior to doing so the party must ensure that "[a]ll pension plans that have not been divided by court order that require joinder ..." have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315. Cal. Rule Ct. 5.390(a).

Here, Petitioner has filed the requisite paperwork and it appears all retirement plans have been joined. Accordingly, the court finds good cause to bifurcate the case and grant a separate trial on the issue of marital status only. The court orders parties to appear for the hearing on this issue.

**TENTATIVE RULING #10: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**11. SCOTT RONNINGEN V. ANGELINA RONNINGEN**

**23FL0127**

On November 13, 2025, Respondent filed a Request for Order (RFO) seeking sanctions and further sentencing for Petitioner's noncompliance with court orders. The RFO was served by mail on January 13, 2026. It appears the Notice of Posting Tentative Ruling was not served with the RFO.

The parties appeared for the hearing on February 26, 2026 at which time the court found improper service of the RFO. Because the RFO deals with failure to comply with an Order to Show Cause (OSC), the RFO must be personally served as would an OSC. The court granted Respondent's request to continue to allow for proper service.

The RFO and the February 26<sup>th</sup> Minute Order were personally served on Petitioner on March 24, 2026.

Petitioner has not filed a Responsive Declaration to Request for Order.

Respondent is seeking the following: (1) Petitioner to be found in noncompliance with his sentence issued at the March 12, 2025 hearing; (2) Petitioner to be found in violation of his probation; (3) further sentencing; and (4) Family Code § 271 sanctions. Of note, Respondent seems to be referencing Petitioner as "Respondent" in her moving papers.

Respondent and her counsel appeared for the hearing on May 21, 2026. Petitioner failed to appear. The court found good cause to proceed in his absence and continued the matter to July 30, 2026 at 1:30 PM. The court issued a bench warrant for Petitioner, however, stayed the warrant pending the next hearing. The court reserved on Respondent's request for attorney's fees and sanctions.

All parties appeared for the hearing on July 30, 2026. The court advised Petitioner of his rights and appointed the Office of the Public Defender on his behalf. The court recalled the bench warrant and continued the matter for further arraignment. The court continued to reserve on Respondent's request for attorney's fees and sanctions.

The parties are ordered to appear for the hearing.

**TENTATIVE RULING #11: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**12. CELESTE SPINA V. ANTHONY CATALANO**

**24FL0448**

On June 12, 2026, Respondent filed a Request for Order (RFO) seeking to vacate the June 4, 2026 Judgment and enter a different judgment. Or, in the alternative, reconsider/clarify the June 4<sup>th</sup> Judgment. All required documents were served by mail on June 15, 2026.

Petitioner filed her Responsive Declaration to Request for Order on September 3, 2026. It was served by mail on September 14<sup>th</sup>. The court finds this to be late served pursuant to Civil Procedure section 1005(b), which states all opposition papers are to be filed and served at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made September 11<sup>th</sup> the last day to serve the responsive declaration. Because it was late-served the court has not read or considered this document.

Respondent is requesting the court either vacate, reconsider, or clarify its orders regarding (1) the \$10,000 valuation of Little Hurricane, LLC; (2) the \$33,000 valuation of *Watts* charges; and (3) vacate the intellectual property income-sharing order and replace it with a workable division as set forth in Section III.C.4 of Respondent’s motion. The Judgment was entered on June 4, 2026 as a result of the March 16, 2026 trial.

This matter is being continued to November 12, 2026 at 8:30am to be heard by Judge Oakley who was the sitting judge during trial in this matter.

**TENTATIVE RULING #12: THIS MATTER IS BEING CONTINUED TO NOVEMBER 12, 2026 AT 8:30AM TO BE HEARD BY JUDGE OAKLEY WHO WAS THE SITTING JUDGE DURING TRIAL IN THIS MATTER.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON**

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 24, 2026

8:30 AM/1:30 PM

**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE  
8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**13. JOY VELLA V. WILLIAM VELLA**

**23FL0247**

Petitioner filed a Request for Order (RFO) on May 21, 2026, seeking post-judgment modification of both child and permanent spousal support. Petitioner concurrently filed an Income and Expense Declaration. Respondent was personally served in accordance with Family Code section 215 on June 1, 2026.

Respondent filed a Responsive Declaration on September 9, 2026, along with an Income and Expense Declaration. Both were served on September 9, 2026. Respondent objects to the requested modifications.

The court has read and considered the filings as outlined above. The court finds it must take testimony on the issue of the modification of child support as there is a factual dispute as to the time share. Parties are ordered to appear to select Mandatory Settlement Conference (MSC) and trial dates.

As to the post-judgment request for spousal support orders, generally speaking, the court is required to take evidence on, and address the Family Code § 4320 factors when ruling on a post-judgment request for modification of spousal support. However, as a threshold issue to that, the moving party must show that there has been a material change in circumstances to warrant a change in support. In re Marriage of Kuppinger, 48 Cal. App. 3d 628 (1975). Here, after reviewing the filings of the parties as outlined above the court finds that Petitioner has failed to establish any change in circumstances which would warrant a change to spousal support. The request is therefore denied.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #13: PARTIES ARE ORDERED TO APPEAR TO SELECT MANDATORY SETTLEMENT CONFERENCE (MSC) AND TRIAL DATES ON THE REQUEST TO MODIFY CHILD SUPPORT.**

**AS TO THE POST-JUDGMENT REQUEST FOR SPOUSAL SUPPORT ORDERS, PETITIONER HAS FAILED TO ESTABLISH ANY CHANGE IN CIRCUMSTANCES WHICH WOULD WARRANT A CHANGE TO SPOUSAL SUPPORT. THE REQUEST IS THEREFORE DENIED.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**14. TRAVIS BASKINS V. DESTINEE BASKINS**

**PFL20200285**

Respondent filed a Request for Order (RFO) on July 7, 2026, seeking a motion to compel discovery responses, as well as sanctions. Upon review of the court file, the Proof of Service states “all documents for motion to compel [sic] all documents for tentative ruling notice.

Petitioner has not filed a Responsive Declaration.

The court drops the matter from calendar due to the lack of proper service. The court is unable to determine what documents were served on Petitioner based on the Proof of Service filed.

**TENTATIVE RULING #14: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**15. DAVID BROOKE V. DEBBIE BROOKE**

**24FL0634**

Respondent filed a Request for Order (RFO) seeking dismissal of the case, as Petitioner is deceased. There is no Proof of Service showing service on the estate of the Petitioner.

The court notes under Family Code section 310 a marriage is dissolved by the death of one of the parties. Except in circumstances where a bifurcated judgment has been entered, any dissolution action abates and the court no longer has jurisdiction to make any further determinations on the action. Here, there is no bifurcated judgment. Therefore, the dissolution is abated as a matter of law, and the Family Court no longer has jurisdiction in this matter.

The matter is dropped from calendar as moot.

**TENTATIVE RULING #15: THE DISSOLUTION IS ABATED AS A MATTER OF LAW, AND THE FAMILY COURT NO LONGER HAS JURISDICTION IN THIS MATTER. THE MATTER IS DROPPED FROM CALENDAR AS MOOT.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**16. CORAL ERICKSON (FLA BRUNET) V. WILFRED BRUNET**

**PFL20210050**

Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC) on June 23, 2026. Petitioner was personally served on June 26, 2026.

Parties are ordered to appear for arraignment.

**TENTATIVE RULING #16: PARTIES ARE ORDERED TO APPEAR FOR ARRAIGNMENT.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**17. JAYDA GORDON V. JOAQUIN SANCHEZ**

**26FL0604**

Petitioner filed a Request for Order (RFO) on June 30, 2026, following the denial of an ex parte application for emergency orders. The RFO seeks child custody and child support orders. Petitioner did not concurrently file an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 13, 2026, and a review hearing on September 24<sup>th</sup>. There is no Proof of Service showing Respondent was properly served.

Respondent filed a Responsive Declaration to the ex parte application on June 30, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it.

Nevertheless, both parties appeared at the CCRC appointment and were able to reach many agreements. A report with the parties' agreements as well as recommendations was prepared on September 9, 2026. Copies were mailed to the parties on September 10<sup>th</sup>.

The court has read and considered the filings as outlined above. The court finds good cause to proceed with the child custody portion of the RFO only. The court finds the agreements and recommendations as set forth in the September 9<sup>th</sup> CCRC report are in the best interest of the minor. The court adopts the agreements and recommendations as set forth.

The court drops the request for child support from calendar due to the lack of proper service as well as for Petitioner's failure to file and serve an Income and Expense Declaration. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #17: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE CHILD CUSTODY PORTION OF THE RFO ONLY. THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH IN THE SEPTEMBER 9<sup>TH</sup> CCRC REPORT ARE**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH.**

**THE COURT DROPS THE REQUEST FOR CHILD SUPPORT FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE AS WELL AS FOR PETITIONER'S FAILURE TO FILE AND SERVE AN INCOME AND EXPENSE DECLARATION.**

**PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**19. KYRA MCAFFEE V. MAXWELL MCAFFEE (JOINED PARTY: BRIAN AND CORRINE BUNCH)****PFL20210499**

*Order to Show Cause*

Joined Parties filed an Order to Chow Cause and Affidavit for Contempt on January 12, 2026. Petitioner and Respondent were properly served. Parties appeared on March 19, 2026, for the initial arraignment. The court appointed the office of the Public Defender to Petitioner, subject to their review and determination of eligibility.

Parties appeared on June 11, 2026, for further arraignment. The Office of the Public Defender declared an overwork conflict. As such, they were thanked and relieved. The Alternate Public Defenders Office was subsequently appointed. Counsel then requested the matter be continued. The court granted the request to continue.

Parties are ordered to appear for the arraignment.

*Request for Order*

Joined Parties filed a Request for Order (RFO) on June 29, 2026, seeking modification of visitation orders. Despite attending Child Custody Recommending Counseling (CCRC) within the prior six months, the parties were referred to CCRC with an appointment on August 14, 2026, and a review hearing on September 24, 2026. All parties were mail served on June 30, 2026.

Petitioner filed a Responsive Declaration on August 14, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it.

The parties attended CCRC and were unable to reach any agreements. A report with recommendations was prepared on September 9, 2026, and mailed to the parties on September 10<sup>th</sup>.

Respondent has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the September 9<sup>th</sup> CCRC report to be in the best interest of the minor. The court adopts the recommendations with the following clarification. Joined Parties shall have one time per month visitation with Weston and Jackson on the 4<sup>th</sup> weekend of the month from Saturday at 12:00 PM to Sunday at 6:00 PM.

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

All other orders not in conflict with this order remain in full force and effect. Joined Parties are directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #19: PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT.**

**THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE SEPTEMBER 9<sup>TH</sup> CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS WITH THE FOLLOWING CLARIFICATION. JOINED PARTIES SHALL HAVE ONE TIME PER MONTH VISITATION WITH WESTON AND JACKSON ON THE 4<sup>TH</sup> WEEKEND OF THE MONTH FROM SATURDAY AT 12:00 PM TO SUNDAY AT 6:00 PM.**

**ALL OTHER ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. JOINED PARTIES ARE DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**20. MICHELLE PETERS V. JOSEPH PETERS**

**24FL0418**

Respondent filed a Request for Order (RFO) on June 30, 2026, requesting modification of the current parenting plan orders, as well as property control orders and *Watts* Credits. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 14, 2026, and a review hearing on September 24<sup>th</sup>. Proof of Service shows Petitioner was served with most, but not all the required documents by mail on June 30, 2026.

Both parties appeared at CCRC and reached a full agreement. A report containing the parties' agreement was prepared on August 18, 2026, and mailed to the parties on August 19<sup>th</sup>.

Petitioner filed and served a Responsive Declaration on September 1, 2026. Petitioner does not raise the defect in service; therefore, the court deems it to be waived. Petitioner requests she be granted exclusive use and control of the former marital residence. Petitioner also objects to a court order that she maintain insurance on the property, duty to the high costs associated with being in a high fire risk area. Petitioner also objects to *Watts* credits. Last, Petitioner requests the court adopt the agreements as set forth in the August 18<sup>th</sup> CCRC report.

Respondent filed a Reply Declaration on September 8, 2026. It was served the same day. Respondent reiterates his original requests regarding the property.

The court has read and considered the filings as outlined above. The court finds the agreements of the parties as set forth in the August 18<sup>th</sup> CCRC report to be in the best interests of the minors. The court adopts the agreements as its orders.

The court grants Petitioner's request for exclusive use and control of the property located at 6008 Pony Express Trail, Pollock Pine, California 95726 pending further order of the court, and reserving on the characterization of the property until the time of trial. Petitioner shall be responsible for the maintenance and upkeep of the property, along with all expenses for the property, subject to any reimbursement claims. Further, the court is directing Petitioner to secure insurance for the manufactured home. As to Respondent's request for *Watts* credits, the court finds this request to be premature, and reserves on the issue until the time of trial.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however,

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #19: THE COURT FINDS THE AGREEMENTS OF THE PARTIES AS SET FORTH IN THE AUGUST 18<sup>TH</sup> CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT ADOPTS THE AGREEMENTS AS ITS ORDERS. THE COURT GRANTS PETITIONER'S REQUEST FOR EXCLUSIVE USE AND CONTROL OF THE PROPERTY LOCATED AT 6008 PONY EXPRESS TRAIL, POLLOCK PINE, CALIFORNIA 95726 PENDING FURTHER ORDER OF THE COURT, AND RESERVING ON THE CHARACTERIZATION OF THE PROPERTY UNTIL THE TIME OF TRIAL. PETITIONER SHALL BE RESPONSIBLE FOR THE MAINTENANCE AND UPKEEP OF THE PROPERTY, ALONG WITH ALL EXPENSES FOR THE PROPERTY, SUBJECT TO ANY REIMBURSEMENT CLAIMS. FURTHER, THE COURT IS DIRECTING PETITIONER TO SECURE INSURANCE FOR THE MANUFACTURED HOME. AS TO RESPONDENT'S REQUEST FOR WATTS CREDITS, THE COURT FINDS THIS REQUEST TO BE PREMATURE, AND RESERVES ON THE ISSUE UNTIL THE TIME OF TRIAL.**

**ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**21. JAMES PETERSON V. MOLLY PETERSON**

**PFL20110929**

Petitioner filed a Request for Order (RFO) on June 25, 2026, seeking modification of the child support orders. Petitioner concurrently filed an Income and Expense Declaration. There is no Proof of Service showing Respondent was properly served with these documents.

Petitioner filed an Amended Income and Expense Declaration as well as a Supplemental Declaration on June 26, 2026. There is no Proof of Service for these documents, and therefore, these documents cannot be considered by the court.

Respondent Filed a Responsive Declaration and Income and Expense Declaration on September 9, 2026. These documents were served on September 4, 2026.

Petitioner filed a Supplemental Declaration on September 11, 2026. Proof of Service shows this was served on September 12, 2026.

Respondent filed a Reply Declaration and an Income and Expense Declaration on September 17, 2026. Both were served the same day.

Parties are ordered to appear for the hearing.

**TENTATIVE RULING #21: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**22. KAYCEE ST. JOHN V. KEVIN PREUSS**

**26FL0601**

Petitioner filed a Request for Order (RFO) on June 25, 2026, seeking child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 7, 2026 and a review hearing on September 24, 2026. Proof of Service shows Respondent was served with only the RFO and blank FL-320.

Only Petitioner appeared at the CCRC appointment on August 7, 2026. As such a single parent report was prepared on August 7, 2026, and mailed to the parties the same day.

The court drops the matter from calendar due to the lack of proper service.

**TENTATIVE RULING #22: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**23. PATRICIA STILLING V. CHARLES STILLING**

**26FL0023**

Petitioner filed a Request for Order (RFO) on July 1, 2026, seeking temporary spousal support as well as an order for Respondent to maintain life insurance or in the alternative not change the beneficiary of Respondent's pension plans. Petitioner concurrently filed an Income and Expense Declaration. Respondent was mail served on July 21, 2026.

Respondent has not filed a Responsive Declaration or an Income and Expense Declaration. The court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court finds temporary guideline spousal support to be \$3,249 payable from Respondent to Petitioner. (See attached X-Spouse) The court orders Respondent to pay Petitioner \$3,249 as and for temporary guideline spousal support effective July 1, 2026, until further order of the court or termination by operation of law.

The court finds this results in an arrears balance of \$9,747 for the months of July through September inclusive. The court orders Respondent to pay Petitioner \$812.25 as and for arrears effective October 15, 2026 and payable on the 15<sup>th</sup> of each month until paid in full (approximately 12 months). If any payment is missed or late, the entire amount shall become immediately due and payable with legal interest.

As to the request for Respondent obtain life insurance, the request is denied without prejudice. Respondent is ordered not to change the beneficiary of the pension plans without further order of the court.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #23: THE COURT FINDS TEMPORARY GUIDELINE SPOUSAL SUPPORT TO BE \$3,249 PAYABLE FROM RESPONDENT TO PETITIONER. (SEE ATTACHED X-SPOUSE) THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$3,249 AS AND FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT EFFECTIVE JULY 1, 2026, UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.**

**THE COURT FINDS THIS RESULTS IN AN ARREARS BALANCE OF \$9,747 FOR THE MONTHS OF JULY THROUGH SEPTEMBER INCLUSIVE. THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$812.25 AS AND FOR ARREARS EFFECTIVE OCTOBER 15, 2026 AND PAYABLE ON THE 15<sup>TH</sup> OF EACH MONTH UNTIL PAID IN FULL**

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**(APPROXIMATELY 12 MONTHS). IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE WITH LEGAL INTEREST.**

**AS TO THE REQUEST FOR RESPONDENT OBTAIN LIFE INSURANCE, THE REQUEST IS DENIED WITHOUT PREJUDICE. RESPONDENT IS ORDERED NOT TO CHANGE THE BENEFICIARY OF THE PENSION PLANS WITHOUT FURTHER ORDER OF THE COURT.**

**PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

New Case

## 2026

## Xspouse 2026-1-CA

## Monthly Figures

## Fixed Shares

|                                     | Husband | Wife  | Monthly Figures  |      | Cash Flow                  |             |
|-------------------------------------|---------|-------|------------------|------|----------------------------|-------------|
| Number of children                  | 0       | 0     | 2026             |      | Guideline                  | Proposed    |
| Percent time with NCP               | 0.00%   | 0.00% |                  |      | Combined net spendable     | 9248 9248   |
| Filing status                       | MFJIN   | MFJIN | GUIDELINE        |      | Percent change             | 0% 0%       |
| Number of exemptions                | 4       | 1     | Nets (adjusted)  |      | Husband                    |             |
| Wages and salary                    | 3000    | 0     | Husband          | 8748 | Payment cost/benefit       | -3249 -3249 |
| Self employed income                | 0       | 0     | Wife             | 500  | Net spendable income       | 5499 5499   |
| Other taxable income                | 4073    | 0     | Total            | 9248 | Change from guideline      | 0 0         |
| TANF CS received                    | 0       | 0     | Support          |      | % of combined spendable    | 59% 59%     |
| Other nontaxable income             | 1879    | 500   | Addons           | 0    | % of saving over guideline | 0% 0%       |
| New spouse income                   | 0       | 0     | Guideln CS       | 0    | Total taxes                | 204 204     |
| Employee 401-k contribution         | 0       | 0     | Alameda SS       | 3249 | Dep. exemption value       | 0 0         |
| Adjustments to income               | 0       | 0     | Total            | 3249 | # withholding allowances   | 0 0         |
| SS paid prev marriage               | 0       | 0     | -                |      | Net wage paycheck          | 2557 2557   |
| CS paid prev marriage               | 0       | 0     | Settings changed |      | Wife                       |             |
| Health insurance                    | 0       | 0     | Proposed         |      | Payment cost/benefit       | 3249 3249   |
| Other medical expenses              | 0       | 0     | Tactic 9         |      | Net spendable income       | 3749 3749   |
| Property tax expenses               | 0       | 0     |                  |      | Change from guideline      | 0 0         |
| Ded interest expense                | 0       | 0     | CS               | 0    | % of combined spendable    | 41% 41%     |
| Contribution deduction              | 0       | 0     | SS               | 3249 | % of saving over guideline | 0% 0%       |
| Misc tax deductions                 | 0       | 0     | Total            | 3249 | Total taxes                | 0 0         |
| Qualified business income deduction | 0       | 0     | Saving           | 0    | Dep. exemption value       | 0 0         |
| Required union dues                 | 0       | 0     | Releases         | 0    | # withholding allowances   | 0 0         |
| Mandatory retirement                | 0       | 0     |                  |      | Net wage paycheck          | 0 0         |
| Hardship deduction                  | 0       | 0     |                  |      |                            |             |
| Other GDL deductions                | 0       | 0     |                  |      |                            |             |
| Child care expenses                 | 0       | 0     |                  |      |                            |             |

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON**

## Per Child Information

|              | DOB | Timeshare | cce(F) | cce(M) | Addons Payor | Basic CS Payor | Pres CS Payor |
|--------------|-----|-----------|--------|--------|--------------|----------------|---------------|
| All children |     | 0 - 0     | 0      | 0      | 0 Husband    | 0 Husband      | 0 Husband     |

Superior Court of California  
County of El Dorado